



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

*57th Legislature, 2nd Regular Session
Majority Research Staff*

[HB2226](#): processing arrestees; veteran status

GILLETTE FLOOR AMENDMENT

States that a defendant's response to a court's inquiry as to veteran status may not be used against them in criminal proceedings unless the defendant falsely attests that they are a veteran of the U.S. Armed Forces.

GILLETTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2226
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 13, chapter 38, article 7, Arizona Revised
3 Statutes, is amended by adding section 13-3904, to read:

4 13-3904. Veteran status: procedure

5 A. AT A PERSON'S INITIAL APPEARANCE HEARING, THE COURT SHALL
6 INQUIRE OF THE PERSON'S STATUS AS A VETERAN OF THE UNITED STATES ARMED
7 FORCES. [THE PERSON'S RESPONSE REGARDING THE PERSON'S VETERAN STATUS MAY
8 NOT BE USED AGAINST THEM IN CRIMINAL PROCEEDINGS UNLESS THE PERSON FALSELY
9 ATTESTS THAT THEY ARE A VETERAN OF THE UNITED STATES ARMED FORCES.]

10 B. IF THE COURT DETERMINES THAT A PERSON IS A VETERAN OF THE UNITED
11 STATES ARMED FORCES, THE COURT SHALL NOTIFY THE PROSECUTING AGENCY OF THE
12 PERSON'S VETERAN STATUS.

13 C. ON NOTIFICATION FROM THE COURT, UNLESS THE PERSON IS CHARGED
14 WITH A DANGEROUS OFFENSE UNDER SECTION 13-704, A SERIOUS OFFENSE OR
15 VIOLENT OR AGGRAVATED FELONY AS DEFINED IN SECTION 13-706 OR A DANGEROUS
16 CRIME AGAINST CHILDREN AS DEFINED IN SECTION 13-705, THE PROSECUTING
17 AGENCY SHALL PROVIDE INFORMATION TO THE PERSON REGARDING SERVICES THAT ARE
18 PROVIDED BY THE DEPARTMENT OF VETERANS' SERVICES AND SHALL CONSIDER
19 REFERRING THE PERSON TO THE VETERANS COURT OR ANOTHER APPROPRIATE
20 TREATMENT COURT OR DIVERSION PROGRAM.

21 D. IF A PERSON'S STATUS AS A VETERAN OF THE UNITED STATES ARMED
22 FORCES IS IN QUESTION, THE PROSECUTING AGENCY SHALL GIVE THE PERSON OR THE
23 PERSON'S ATTORNEY AN OPPORTUNITY TO PROVE THE PERSON'S VETERAN STATUS
24 THROUGH OFFICIAL DOCUMENTATION, INCLUDING A UNITED STATES DEPARTMENT OF
25 DEFENSE FORM 214 (DD-214) INDICATING THE PERSON'S RELEASE OR DISCHARGE
26 FROM ACTIVE MILITARY DUTY.

House Amendments to H.B. 2226

- 1 Enroll and engross to conform
- 2 Amend title to conform

JOHN GILLETTE

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